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License No. : KEP-365/NB.1/2013

Contract Number: N7XB000124/S8A1009724

RISK DETAILS SECTION

REINSURED	: PT. Asuransi Tri Pakarta, Jakarta, Indonesia (hereinafter referred to as the 'Reinsured')
PERIOD	: Losses occurring during the period commencing 1 January 2024 and ending 31 December 2024 both days inclusive, local standard time at the place where the loss occurs. The acceptance of war risks under this contract/treaty is at all times subject to seven days' notice of cancellation given by either party; such period of notice to commence not later than three days from the date of notice given by the reinsurer.
TYPE	: Whole Account Excess of Loss Reinsurance Agreement
RECORDING, TRANSMITTING AND STORING INFORMATION	: Where the Intermediary or Intermediaries as applicable maintain(s) risk and claim data / information / documents the Intermediary or Intermediaries as applicable may hold such data / information / documents electronically.
CLASS OF BUSINESS	: Conventional and Syariah Business

Section 1

Fire and Allied perils including Loss of Profit Business written in the Reinsured's Fire Department.

Section 2

Engineering business i.e. :

- a. Contractors All Risks (including TPL & Construction Plant Equipment/ Machineries).
- b. Erection All Risks (including TPL & Erection Plant Equipment / Machineries).
- c. Machinery Breakdown (incl. Loss of Profit).
- d. Boiler Explosion Insurance.
- e. Electronic Equipment Insurance
- f. Civil Engineering Completed Risk (CECR)
- g. Heavy Equipment / Contractor Plant Machinery and Equipment insurance (CPME)
- h. Comprehensive Machinery Insurance
- i. Marine Cum

Written in the Reinsured's Engineering Department

Section 3

All General Accident business i.e.:

- a. Workmen's Compensation.
- b. General and Public Liability (including Comprehensive General Liability).
- c. Employers Liability.
- d. Personal Accident including Travelers.
- e. Fidelity Guarantee.
- f. Burglary/Theft.
- g. Plate Glass/Neon Signs/Billboard.
- h. Travel Insurance including Computerised Travel Insurance.
- i. Automobile Liability.
- j. Moveable Property All Risk.
- k. Hole In One.
- l. Professional Indemnity.
- m. Product and Contractual Liability.

Written in the Reinsured's General Accident Department

Section 4

Marine Cargo business including War, Strikes, Riots and Civil Commotions (SRCC), and Malicious Damage and Cash in Transit business written in the Reinsured's Marine Cargo Department.

Section 5

All Money Insurance business i.e.:

- a. Cash In Safe (CIS).
- b. Cash In Cashier Box (CICB).
- c. Cash In Automatic Teller Machiner (ATM).

Including Fidelity Guarantee.

Written in the Reinsured's General Accident Department

EXCLUSIONS : As per Appendix 1 (one) attached.

TERRITORY : Indonesia, Indonesian Interests abroad but worldwide for PA and Marine Cargo.

TREATY LIMIT : **1st Layer**
IDR 21,000,000,000 or USD 1,400,000 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

Excess of IDR 7,500,000,000 or USD 500,000 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

2nd Layer

IDR 21,500,000,000 or USD 1,433,333.34 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

Excess of IDR 28,500,000,000 or USD 1,900,000 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

3rd Layer

IDR 60,000,000,000 or USD 4,000,000.- each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

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Excess of IDR 50,000,000,000 or USD 3,333,333.34 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

4th Layer

IDR 100,000,000,000 or USD 6,666,666.67 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

Excess of

IDR 110,000,000,000 or USD 7,333,333.34 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

5th Layer

IDR 90,000,000,000 or USD 6,000,000 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

Excess of

IDR 210,000,000,000 or USD 14,000,000 each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

REINSTATEMENT : 1st Layer

3 reinstatements at 100% each. Additional Premium pro-rata to amount only.

2nd Layer

3 reinstatements at 100% each. Additional Premium pro-rata to amount only.

3rd Layer

2 reinstatements at 100% each. Additional Premium pro-rata to amount only.

4th Layer

1 reinstatements at 100% each. Additional Premium pro-rata to amount only.

5th Layer

1 reinstatements at 100% each. Additional Premium pro-rata to amount only.

**MINIMUM AND
DEPOSIT
PREMIUM****: 1st Layer**

Minimum and Deposit Premium IDR 12,070,000,000 payable quarterly in advance adjusted at 15.78% of Reinsured's Gross Net Premium Income for the above class of business.

Payment dates: January 1, 2024; April 1, 2024; July 1, 2024; Oct 1, 2024.

2nd Layer

Minimum and Deposit Premium IDR 3,867,500,000 payable quarterly in advance adjusted at 5.06% of Reinsured's Gross Net Premium Income for the above class of business.

Payment dates: January 1, 2024; April 1, 2024; July 1, 2024; Oct 1, 2024.

3rd Layer

Minimum and Deposit Premium IDR 3,400,000,000 payable quarterly in advance adjusted at 4.44% of Reinsured's Gross Net Premium Income for the above class of business.

Payment dates: January 1, 2024; April 1, 2024; July 1, 2024; Oct 1, 2024.

4th Layer

Minimum and Deposit Premium IDR 1,785,000,000 payable quarterly in advance adjusted at 2.33% of Reinsured's Gross Net Premium Income for the above class of business.

Payment dates: January 1, 2024; April 1, 2024; July 1, 2024; Oct 1, 2024.

5th Layer

Minimum and Deposit Premium IDR 1,190,000,000 payable quarterly in advance adjusted at 1.56% of Reinsured's Gross Net Premium Income for the above class of business.

Payment dates: January 1, 2024; April 1, 2024; July 1, 2024; Oct 1, 2024.

**DEDUCTIONS
FROM
REINSURANCE
PREMIUM**

: None, other than taxes if any, specified below and brokerage as set out under Broker Remuneration and Deductions.

**TAXES PAYABLE BY
REINSURER(S) AND
ADMINISTERED BY
THE REINSURED
OR THEIR AGENT**

: None, or as may be subsequently required by applicable legislation.

**TAXES PAYABLE BY
REINSURED AND
ADMINISTERED
BY REINSURERS
CHOICE OF
LAW AND
JURISDICTION**

None, or as may be subsequently required by applicable legislation.

: (AGREEMENT AND ARBITRATION TRIBUNALS)
Applicable Law: The Republic of Indonesia.
Applicable Jurisdiction: The exclusive jurisdiction of the Republic of Indonesia.
As more fully defined within the attached Contractual Wording.

**EXPRESS
WARRANTIES**

: Two Risks Warranty for Motor.

**SEAT OF
ARBITRATION**

: Jakarta, the Republic of Indonesia.

APPOINTOR

: The Chairman of the Council of the Insurance Association in Indonesia.

**CONDITIONS
PRECEDENT**

: Arbitration Clause

**GENERAL
CONDITIONS**

: This Reinsurance is subject to all terms and conditions as original except as otherwise provided herein, and follows the settlements of the Reinsured of whatever nature within the limits of this reinsurance, including but not limited to:

- 1) Scope of Cover Clause (as attached)
- 2) Limits of Indemnity Clause (as attached)
- 3) Reinstatement Clause (as attached)
- 4) Premium Clause (as attached)
- 5) Claims Notification Clause (as attached)
- 6) Loss Settlement Clause (as attached)
- 7) Extended Expiration Clause (as attached)
- 8) Ultimate Net Loss Clause (as attached)
- 9) Net Retained Lines Clause (as attached)
- 10) Risk Definition Clause (SRA 009) (as attached)
- 11) Right of Management Clause (as attached)
- 12) Arbitration Clause (as attached)
- 13) Governing Law Clause (as attached)
- 14) Amendments, Special Acceptances and/or Special Agreements (as attached)
- 15) Access to Records Clause (as attached)
- 16) Errors and Omissions (as attached)
- 17) Several Liability Clause (LSW 1001 Reinsurance) (as attached)
- 18) Event Definition SR 460 (applicable to Sections 1, 2 and 5 only) and definitions of event applicable to Section 3 only and Section 4 only (as attached)
- 19) Property Damage Clarification Clause (as attached)
- 20) Institute Extended Radioactive Contamination Exclusion Clause 1.12.2002 (as attached)
- 21) Institute Biochemical Clause 365 (as attached)
- 22) Paramount War Clause (as attached) (applicable to Section 4 only)
- 23) War and Civil War Exclusion Clause – LIRMA G51 (amended) (as attached)
- 24) Nuclear Energy Risks Exclusion Clause NMA1975a (as attached)
- 25) Nuclear Exclusion Clause SR482 (as attached)
- 26) War Inclusion Clause (Marine) (as attached) (applicable to Section 4 only)
- 27) Aggregate Voyage Extension Clause (Cargo) 1.12.85 (as attached) (applicable to Section 4 only)
- 28) EDRC (B) (amended) – to be agreed by Reinsurers (as attached)
- 29) Industries, Seepage, Pollution and Contamination Clause No. 3 (as attached)
- 30) Riots, Strikes, Malicious Damage and Civil Commotion (Endorsement Code 4.1A/2007 and/or 4.1B/2007)
- 31) For cargo: war, strikes, riots, civil commotion and malicious damage subject to 7 days notice of cancellation at any time plus 48 hours for communication. The risk of war, strikes, riot and civil commotion, etc. risks are covered hereunder as on the original policy or policies but subject to the Reassured applying the limitations of the United Kingdom Waterborne Agreement dated 1.1.82 and any subsequent amendment(s) thereto, subject to the provisions of the Paramount War Clause.

- 32) Renewal of the approved special acceptance are automatically agreed by leading reinsurer subject to loss ratio of the risk is less than 60% in the preceding year.
- 33) 30 days Premium Payment Warranty + 15 days (intermediary); otherwise termination of this contract upon date of breach, with pro-rata time on risk premium payable
- 34) All contingent business interruption extensions shall be granted only as a consequence of insured physical damage within deductible.
- 35) Suppliers and Customers extension to be on "First Tier" only, to have a time excess (three (3) to seven (7) days), and sub-limited to 10% of Business Interruption sum insured or USD 10,000,000 whichever is lower. For Supplier and Customers located outside the territorial scope of this treaty, coverage granted only as a consequence of FLEXAS only
- 36) Public Utilities and Prevention of Access Extensions sub-limited to 10% of Business Interruption Sum Insured or USD 10,000,000 whichever is lower
- 37) Two risks warranty for Motor
- 38) Total Asbestos Exclusion Clause (as attached)
- 39) Currency Fluctuation Clause (as attached)
- 40) Sanction Limitation and Exclusion Clause LMA 3100
- 41) Claims Clause (as attached)
- 42) Liability Exclusion Clause – A (as attached)
- 43) Liability Exclusion Clause – B (as attached)
- 44) Joint Excess Loss Committee Terrorism Exclusion Clause (as attached) (applicable to Section 4 only)
- 45) It is hereby noted and agreed that General Accident, Money Insurance and Motor Vehicles are to be protected under Catastrophe coverage without premiums.
- 46) Terrorism Exclusion Clause as per NMA 2921 (08/10/01) (not applicable to Section 4)

WORDING : Full contractual wording is incorporated.

SPECIAL ACCEPTANCE : All special acceptances to be agreed by the Leading Reinsurer only and binding on all following Reinsurers hereon.

SPECIAL CONDITIONS : As per Appendix 2 (two) attached.

LOSS NOTIFICATION CLAUSE : Loss Notification to the Reinsurer not later than 6 months from the date of loss plus preliminary loss Advice (PLA) updated 60 days after Loss Adjuster Report being Published otherwise the Reinsurer has the rights to deny liability of such losses.

Appendix Number 1 (one)**Exclusion List**

This Reinsurance does not cover any loss or damage occasioned by or through or in consequence directly or indirectly of any of the following perils or classes of business specified in the following exclusions and exclusion clauses, namely:

Standard General Exclusions

1. Reinsurance Treaty (Proportional and Non Proportional) Business.
2. Retrocession Business.
3. Pool Business.
4. Obligatory Reinsurances.
5. Line slips, binding authorities, brokers' covers, captive pools.
6. Excess of Loss / Layered and PML Basis Insurance and Reinsurance Business.
7. Extra Contractual Obligations Exclusion Endorsement.
8. Liability arising from loss portfolio transfer of any kind.
9. Nuclear Energy Risks Exclusion Clause 1994 – NMA 1975 (a).
10. War and Civil War Exclusion Clause – NMA 464.
11. Seepage and Pollution Risks – NMA 1685.
12. Electronic Date Recognition Endorsement A; NMA 2800 11/12/1997.
13. Terrorism and Sabotage as defined by the General Insurance Association of Indonesia (AAUI).
14. IT Hazard Clarification Clause NMA 2912 - 12/11/01.
15. Cyber Exclusion Clause - NMA 2915.
16. Offshore Risks (offshore construction/erection works), except Palapa Ring Account maximum 20% of Treaty Limit
17. Asbestos Exclusion.
18. Sanction Limitation & Exclusion Clause LMA 3100.
19. Communicable Disease Exclusion (Casualty Treaty) LMA 5399.
20. All Type of business not expressly mentioned under the BUSINESS AND SCOPE.
21. Inward Business and Poll Business except for Inward Facultative business
22. Ex-Gratia (non binding to all reinsurers)

Section 1 Exclusions

1. Traditional Pasar Risk (risk code 2935) as defined by the Pasar Konsorsium.
2. Difference In Conditions (DIC) policies (not include different premium rate)
3. Communicable Disease Exclusion Clause – Property Treaty Reinsurance LMA 5394

Section 2 Exclusions

1. All Classes of business not explicitly mentioned as being covered under this Agreement e.g.:
 - Offshore Risks (offshore construction/erection works)
 - Space Risks and Space-Related Risks such as satellites, spacecraft, launch vehicles and major components thereof from the beginning of transit to launch site; launch Sites.
2. All defective design cover, plan, specification and workmanship unless MR 115 (or DE3) and MR 200 (or LEG2).
3. Penalty Clauses (i.e. faulty or belated delivery of the insured objects).
4. Computer Fraud.
5. Financial and/or Performance/Production Guarantees.
6. Decennial Liability.
7. Employers' Liability/Workmen's' Compensation.
8. Pollution / contamination, except liability arising from a sudden accidental, identifiable, unintended and unexpected event.
9. Tunnelling works involving the use of any explosive /blasting

10. Transmission and Distribution lines in the operational phase.
11. The Construction Period longer than 72 months (including Maintenance, Testing and Commissioning) subject to leaders approval.
12. CAR/EAR policies having maintenance or defect liability period more than 36 months.
13. Electronic and computer crime.
14. Difference in Conditions (DIC) Policies (not include different premium rate).
15. Communicable Disease Exclusion Clause – (For use on power generation, construction and engineering policies) LMA 5397

Section 3 Exclusions

General Accident Exclusions

1. Rowing, standing and drying crops (including timber).
2. Aquaculture.
3. Greenhouses.
4. Any kind of All Risks business other than All Risks business for personal effects.
5. Satellites, launch vehicles and major components thereof from the beginning of transit to launch site. Launch sites.
6. Larceny (i.e. theft without violence), mysterious disappearance.
7. Aviation and Marine Risks of any kind.
8. Natural hazards of any kind.
9. Subsidence.
10. Communicable Disease Exclusion (For use on liability policies) LMA5396
11. Golfers Liability.
12. Heavy Equipment / Contractor Plant Machinery / Equipment Non Project.

Personal Accident Exclusions

1. Big game hunting.
2. Participation in any kind of race with motorised vehicles.
3. Slot machine and newspaper coupon business.
4. Airport machine business and tour operators group schemes.
5. Coupon, Discount/Charge/Credit Cards or any other similar schemes except for Personal Accident coverage on Diners' Travel Account.
6. Professional sports teams.
7. Medical expenses (including hospitalisation) which are not due to an accident.
8. This insurance does not cover any losses, cost or expenses arising directly or indirectly out of nuclear fission, nuclear radiation or radioactive contamination (resulting therefrom), irrespective of whether other causes have contributed to the claim.

Third Party Liability Exclusions

Excluding claims arising out of the following:

1. The ownership or use of aircraft and air cushioned vehicles, motor vehicles, cable cars and vessels.
2. Railways, tramways, aerodromes and airports.
3. Dry docks, docks, quays shipbuilding, ship-repairing and ship-breaking yards.
4. Manufacture, storage, filling, breaking down, transport:
 - a) Fireworks, ammunition, fuses, cartridges, powder, nitro glycerine or any explosives.
 - b) Gases and/or air under pressure in containers.
 - c) Butane, methane, propane and other liquid gases.
 - d) Petrochemicals.(It is understood and agreed, however, that the storage and transport of any of the substances abovementioned which is merely incidental to the operation and/or trade of the Insured is not excluded from this reinsurance).
5. Gas or electricity undertakings.

6. Underground and underwater mine and all underground services in connection therewith.
7. Quarries if explosives are used.
8. Tunnelling and all excavation work in connection therewith.
9. Contractors carrying out construction, repair or installation work on vessels or aircraft or within the perimeters of airport.
10. Construction and maintenance of dams (coffer dams) or underwater construction and/or other work.
11. Drilling, producing, refining and/or distributing of liquid or gaseous fuels.
12. Director's Liability.
13. Product Recall and/or Defective Design.
14. Pollution.
15. All claims and losses based upon, arising out of, directly or indirectly resulting from or in consequence of, or any way involving:
 - a) asbestos or
 - b) any actual or alleged asbestos related injury or damage involving the use, presence, existence, detection, removal, elimination or avoidance of asbestos or exposure or potential exposure to asbestos.
16. Medical Malpractice.
17. Ocean Marine Liability including Warehousemen's Legal Liability.
18. The ownership, operation or use of amusement parks and devices, stadiums and stands.
19. Onshore and offshore oil and gas operations.

Fidelity Guarantee Exclusions

1. Losses caused by a person who is known to have committed dishonest and fraudulent acts.
2. Losses resulting from bodily injury.
3. Indirect losses e.g. loss of interest, losses due to business interruption.
4. Errors in book keeping and/or losses discovered during stocktaking.
5. Bankers' bonds.
6. Unauthorized trading risks and/or losses by dealers, traders, brokers, etc. in the financial and/or commodity markets.
7. Espionage, blackmailing, extortion, libel and similar risks.
8. Other bonds and guarantees of any kind.

Workmen's Compensation/Employers' Liability Exclusions

1. Aircraft crews.
2. Underground and underwater mines and all underground services in connection therewith
3. Manufacture and/or production, storage, filling, breaking down, transport of:
 - a) Fireworks, fuse(s), cartridges, ammunition, powder, nitroglycerine or any explosives
 - b) Gases and/or air under pressure in containers
 - c) Butane, Methane, Propane, and other liquefied gases (This Exclusion does not apply to general retailers and consumers)
 - d) Toxic substances and toxic waste(It is understood and agreed, however, that the storage and transport of any of the substances above mentioned which is merely incidental to the operations and/or trade of the company's insured not otherwise excluded, is hereby covered).
4. All claims and losses based upon, arising out of, directly or indirectly resulting from or in consequence of, or any way involving:
 - a) asbestos or
 - b) any actual or alleged asbestos related injury or damage involving the use, presence, existence, detection, removal, elimination or avoidance of asbestos or exposure or potential exposure to asbestos.
5. Ships crews.
6. Tunnelling exceeding 100 metres in length.
7. Offshore rigs.

8. Quarries, if explosives are used, unless merely incidental to the operations and/or trade of the company's insured not otherwise excluded.
9. The construction, maintenance and demolition of towers, steeples, bridges and chimney shaft unless merely incidental to the operations and/or trade of the company's insured not otherwise excluded.
10. Contractors engaged exclusively in wrecking and demolition.
11. Construction and maintenance of dams.
12. Shipbuilding, ship repairing and shipbreaking. This exclusion does not include general maintenance/repairs carried out by general contractors, and incidental contracts including work on board vessels.
13. Oil companies - drilling, producing, refining and distributing (other than general distributors and petrol stations).
14. Fire brigades.
15. This insurance does not cover any losses, costs or expenses arising directly or indirectly out of nuclear fission, nuclear radiation or radioactive contamination (resulting therefrom), irrespective of whether other causes have contributed to the claim.

Section 4 Exclusions

1. Paramount War Clause 5/10/77.
2. Institute Radioactive Contamination Exclusion Clause 1/10/90.
3. Electronic Date Recognition Endorsement Clause – C.
4. Seepage and Pollution Exclusion Clause 1/1/89.
5. Nuclear Energy Risks Exclusion Clause 1/1/89.
6. Institute Extended Radioactive Contamination Exclusion Clause 1/11/02.
7. Institute Chemical, Biological, Bio-Chemical, Electromagnetic Weapons and Cyber Attack Exclusion Clause. 1/11/02.
8. Political Risk, Financial Guarantee and Credit Exclusion Clause 1995.
9. Information Technology Hazards Exclusion Clause – JEL 16/11/01.
10. Termination of Transit Clause (Terrorism) JC2001/056.
11. Marine or Aviation Hulls, unless carried as Cargo.
12. Rejection, Prohibition and Embargo Risks.
13. Confiscation Risks.
14. Stock Throughput Risk.
15. Sanctions Limitation and Exclusion Clause.
16. Coronavirus Exclusion (for use on marine and energy liability policies) LMA5395 or JC2022 – 022

Section 5 Exclusions

1. Rowing, standing and drying crops (including timber).
2. Aquaculture.
3. Greenhouses.
4. Any kind of All Risks business other than All Risks business for personal effects.
5. Satellites, launch vehicles and major components thereof from the beginning of transit to launch site. Launch sites.
6. Larceny (i.e. theft without violence), mysterious disappearance.
7. Aviation and Marine Risks of any kind.
8. Natural hazards of any kind.
9. Subsidence.

Appendix Number 2 (two)**Special Conditions****All Sections**

1. Inward Facultative Business can be ceded to the Treaty.
2. Renewal of the approved special acceptance are automatically agreed by leading reinsurer.

Section 1

1. Cession in respect of Riots, Strikes, Malicious Damage risk is subject to the following conditions :
 - a) As defined by The General Insurance Association of Indonesia (AAUI).
 - b) Limit of liability any one event (event limit) figures for "Riots, Strikes, Malicious Damage Endorsement Code 4.1 A/2007 and/or 4.1 B/2007" shall not exceed IDR 1,500,000,000,000.
2. Cession in respect of Earthquake, Volcanic Eruption and Tsunami risk is subject to the following conditions :
 - a) As per AAUI Earthquake Policy SK No. 005/AAUI/2003 dated 13 January 2003 and its related endorsement.
 - b) Priority Cession to PT. MAIPARK.
 - c) Premium rate subject to PT. MAIPARK
 - d) Limit of liability any one event (event limit) figures shall not exceed IDR 1,500,000,000,000.
3. Cession in respect of Flood, Windstorm, Tempest and Water Damage risk is subject to the following conditions :
 - a) As per Flood , Windstorm, Tempest and Water Damage Code 4.3A
 - b) Deductible as per SEOJK No. 6/SEOJK.05/2017
 - c) Limit of liability any one event (event limit) figures shall not exceed IDR 1,500,000,000,000.

For the purposes of this Agreement, Jadebotabek (which include Jakarta, Depok, Bogor, Tangerang and Bekasi) shall be regarded as one city.

An event shall include all insured losses which arise directly from the same cause and which occur during the same period of time and in the same area. Such cause is understood to be the peril which directly occasions the losses or where there are several perils which, in an unbroken chain of causation, have occasioned the losses, the peril which triggered the chain of causation. The duration and extent of an event so defined shall be limited to 168 consecutive hours for Flood, Windstorm, Tempest and Water Damage.

4. Accumulation Control of:
 - a) Riots, Strikes, Malicious Damage Endorsement code 4.1A/2007 and RSMD 4.1B/2007.
 - b) Earthquake, Volcanic Eruption and Tsunami Endorsement code 4.2.
 - c) Flood, Windstorm, Tempest and Water Damage code 4.3A

As at March 31st, June 30th, September 30th and December 31st shall be reported by the Reinsured to the Reinsurer within 30 (thirty) days thereafter.

Should the Reinsured fail to report the accumulation figures within the period, the Reinsured shall be deemed to have reported the accumulation figure being the same with the latest reported accumulation figure made by the Reinsured to the Reinsurer.

5. Industrial/Commercial/Property All Risks, Business Interruption/Loss of Profit/Consequential Loss following FLEXAS; RSMD 4.1A/2007; RSMD/CC 4.1B/2007; code 4.2 Earthquake, Volcanic Eruption and Tsunami and code 4.3 Windstorm, Tempest, Flood and Water Damage can be ceded to the treaty subject to :
 - a) Combined Limit Material Damage and LOP.
 - b) Sum Insured of Business Interruption/Loss of Profit/Consequential Loss maximum 50% of Material Damage and 60 days Time Excess.
 - c) Indemnity Period Maximum 24 months.
6. Catastrophic Losses subject to submission of a Special Report on Total Potential Loss immediately not later than 60 (sixty) days after the event and monthly updated.
7. Suppliers and Customers extension to be on "First Tier" only, to have a time excess (three (3) to seven (7) days), and sub-limited to 10% of Business Interruption sum insured or USD 10,000,000 whichever is lower.
8. Public Utilities and Prevention of Access Extensions sub-limited to 10% of Business Interruption Sum Insured or USD 10,000,000 whichever is lower.
9. Oil and Gas risk for onshore only can be ceded into treaty subject to :
 - a. 10% of Treaty Limit.
 - b. Wording policy as per Oil and Gas Well Drilling Tool Floater Form (Land).
 - c. Territorial Scope : Indonesian Onshore Territories and Indonesian interest worldwide but to exclude North Sea and Gulf of Mexico offshore property and associated interests absolutely.
 - d. Political Risk, Financial Guarantee and Credit Exclusion Clause 1995.
 - e. Seepage and Pollution Risk Exclusion Clause 1/1/89.

Section 2

1. Cession in respect of Riots, Strikes, Malicious Damage plus Civil Commotion not wider than Riots, Strikes, Malicious Damage Endorsement Code 4.1B/2007 as defined by The General Insurance Association of Indonesia (AAUI).
2. Catastrophic Losses subject to submission of a Special Report Total Potential Loss immediately not later than 60 (sixty) days after the event and monthly updated.
3. The Construction Period longer than 72 months (including Maintenance, Testing and Commissioning) can be ceded in to the treaty subject to leaders approval.
4. Advance Loss of Profit (CAR/EAR) and Business Interruption (MB/CECR) can be ceded into Treaty
5. The Construction Period of CAR/EAR can be ceded into treaty even though the construction period is not following the period of contract
6. Offshore Construction/Erection Work can be ceded into treaty for seashore project work subject to scope of work in onshore more than 50% of contract value.

Section 3

1. Cession in respect of Riots, Strikes, Malicious Damage plus Civil Commotion not wider than Riots, Strikes, Malicious Damage Endorsement Code 4.1B/2007 as defined by The General Insurance Association of Indonesia (AAUI).
2. Fidelity Guarantee can be ceded into the treaty.

3. General and Public Liability risk is subject to:
 - a) Maximum Annual Aggregate Limit (AAL) is 3 (three) times of Limit of Liability in the policy.
 - b) Claim Made basis.
4. Catastrophic Losses subject to submission of a Special Report on Total Potential Loss immediately not later than 60 (sixty) days after the event and monthly updated.

Section 4:

1. Marine Cargo Policy as per International Underwriting Association of London (IUA) or "Polis Standar Asuransi Pengangkutan Barang Indonesia (PSAPBI)" issued by AAUI.
2. Land Transit policy as per Polis Standar Asuransi Pengangkutan Barang Indonesia (PSAPBI).
3. Cession in respect of War & Strikes Risk subject to Trading Warranty and Rating mentioned on the latest circular letter of Joint Cargo Committee.
4. Cash in Transit plus extended cover PA + Theft + Burglary + FLEXAS + Act of God + RSMDCC + Fidelity Guarantee can be ceded into treaty.

Section 5:

1. Cession in respect of Riots, Strikes, Malicious Damage plus Civil Commotion not wider than Riots, Strikes, Malicious Damage Endorsement Code 4.1B/2007 as defined by The General Insurance Association of Indonesia (AAUI).
2. Catastrophic Losses subject to submission of a Special Report on Total Potential Loss immediately not later than 60 (sixty) days after the event and monthly updated.
3. Cash in Safe/Cash in Cashier Box/Cash In ATM with coverage CIS/CICB plus extended cover Theft + Burglary + FLEXAS + Act of God + RSMDCC + Fidelity Guarantee can be ceded into treaty.

CONTRACTUAL WORDING

EXCESS OF LOSS REINSURANCE AGREEMENT

between

THE REINSURED

as specified in the attached Risk Details Section

and

the subscribing reinsurers whose names and proportions
hereof are set out in the attached Signing Schedule(s),

(hereinafter called the "REINSURER")

1. SCOPE OF COVER CLAUSE

This Agreement between PT Asuransi Tri Pakarta referred to as REINSURED hereafter, and the subscribing REINSURERS, referred to as REINSURER hereafter, shall apply to losses occurring during the period as stated under "PERIOD" in the Schedule and within the geographical area as stated under "TERRITORIAL SCOPE" in the Schedule, on policies/contracts of insurance and facultative reinsurance written by the REINSURED in the class(es) of business as stated under "CLASS OF BUSINESS" in the Schedule subject to the "CONDITIONS" and "EXCLUSIONS" as stated therein.

2. LIMITS OF INDEMNITY CLAUSE

Subject to the terms and conditions detailed in the Schedule, the reinsurer hereby agrees to indemnify the reinsured for that part of its ultimate net loss which exceeds the amount of "deductible" stated on the Schedule on account of each and every risk, each and every loss, and each and every loss occurrence arising out of one event and the sum recoverable under this agreement shall be up to but not exceeding the amount stated under "limits of indemnity" on the Schedule ultimate net loss each and every risk, each and every loss, and each and every loss occurrence arising out of one event.

3. REINSTATEMENT CLAUSE

In the event of loss or losses occurring under this Agreement, it is hereby agreed to reinstate the "Limit Of Indemnity" to its full amount from the time of occurrence of such loss or losses to the expiry hereof, in consideration for which the REINSURED shall pay to the REINSURER when such loss or losses are settled, an additional premium calculated pro rata of the premium finally due hereunder in accordance with the provisions of the Premium Clause.

Nevertheless, the liability of the REINSURER hereunder shall never be more than the amount stated under "LIMITS OF INDEMNITY" on the Schedule in respect of any one loss occurrence, nor more than the multiple of such limit as derived from the number of permitted

reinstatements as stated under “REINSTATEMENT” on the Schedule, in all during the period of this Agreement.

For the purpose of calculation of any reinstatement premium hereunder it is understood that:

The term “pro rata” shall mean pro rata as to the fraction of the amount of indemnity reinstated to the limit of indemnity any one loss occurrence.

In the event of a loss settlement being made hereunder prior to the adjustment of premium being made, the reinstatement premium shall be provisionally calculated on the Deposit Premium.

4. PREMIUM CLAUSE

The Reinsured shall pay to the Reinsurers a Deposit Premium payable in four equal installments on the 1st January 2024, 1st April 2024, 1st July 2024 and 1st October 2024 and the Deposit Premium shall be subsequently adjusted to an amount equal to a percentage rate calculated upon the Gross Net Premium Income underwritten and accounted for by the Reinsured in respect of business coming within the scope of this Agreement during the period hereof.

For the purposes of the adjustment of this Agreement the total Gross Net Premium Income for the twelve months period shall be calculated by using the average rate of exchange for the period.

As soon as may be reasonably practicable after the expiry of this Agreement the Reinsured shall submit a statement of their actual Gross Net Premium Income (as defined herein) for the period hereof for the purposes of premium adjustment between the parties hereto, subject however, to the Reinsurers receiving not less than the Minimum Premium for this Agreement.

The term “Gross Net Premium Income” shall be understood to mean gross premiums less only return premiums and cancellations and premiums paid for Reinsurance, recoveries under which inure to the benefit of the Reinsurers.

5. CLAIM NOTIFICATION CLAUSE

The Reinsured undertakes to advise the Reinsurers as soon as possible of any circumstances likely to exceed 50% of the priority of the 1st Layer of this Agreement together with an estimate of the Reinsurers’ liability and thereafter keep the Reinsurers fully informed of any developments regarding the claim.

The Reinsured shall furnish the Reinsurer with all available details and information regarding the loss.

As soon as it becomes apparent in the event of a loss that a claim will exceed USD 100,000, the Reinsurers shall have the right to take part, at its own expense, in the handling of the claim in an internal advisory capacity.

6. LOSS SETTLEMENT CLAUSE

Claim settlements by the Reinsured shall be binding upon the Reinsurer, providing such settlements are within the terms and conditions of the relevant policy and within the terms and conditions of this Agreement and providing the Reinsured for its part has actually paid by transferring the necessary funds or is about to pay the Insured.

Payments by the Reinsured to the Insured where the Reinsured is not liable (i.e. ex gratia payments) shall only be binding upon the Reinsurer where its approval is obtained prior to any payment.

The Reinsurer shall be entitled to deduct from its share any balance due to it under this Agreement.

7. EXTENDED EXPIRATION CLAUSE

If this Agreement should expire or be terminated while a loss occurrence covered hereunder is in progress it is understood and agreed that, subject to the other conditions of this Agreement, the Reinsurers hereon are responsible as if the entire loss or damage had occurred prior to the expiration of this Agreement, provided that no part of that loss occurrence is claimed against any renewal of this Agreement.

8. ULTIMATE NET LOSS CLAUSE AMENDED

The term "ULTIMATE NET LOSS" shall be understood to mean the sum actually paid by the REINSURED in settlement of claims made upon them after taking deduction for all recoveries, all salvages and all claims under other reinsurances or retrocession whether collected or not and shall include all adjustment expenses arising from the settlement of claims other than the salaries of employees and the office expenses of the REINSURED.

All salvages, recoveries or payments recovered or received subsequent to a loss settlement under this Agreement shall be applied as if recovered or received prior to the aforesaid settlement and all necessary adjustments shall be made by the parties hereto. Provided always that nothing in this Clause shall be construed to mean that losses under this Agreement are not recoverable until the REINSURED's ultimate net loss has been ascertained.

The "ULTIMATE NET LOSS" shall not be increased by any amount otherwise recoverable under any inuring proportional reinsurances but for the operation of any treaty condition that restricts reinsurance recovery. Such treaty conditions include Event Limit; Cession Limit & Average Condition; Co-insurance/ Inward Fac Restriction.

9. NET RETAINED LINES CLAUSE

This Agreement shall only protect that portion of any insurance or reinsurance which the REINSURED retains net for its own account. In calculating any loss hereunder and also computing the amount in excess of which this Agreement attaches, only losses in respect of that portion of any insurance or reinsurance which the REINSURED retains net for its own account shall be included.

It is understood and agreed that the amount of the REINSURER's liability hereunder shall not be increased by reason of the inability of the REINSURED to collect from any other REINSURERS, whether specific or general, any amounts which may become due from them, whether such inability arises from insolvency of such other REINSURERS or otherwise.

10. RISK DEFINITION CLAUSE (SRA 009)

The Company shall be the sole judge of what constitutes one risk provided, however, that:

- A. A risk shall never be less than all insurable values within exterior walls and under one roof regardless of fire divisions, the number of policies involved, and whether there is a single, multiple or unrelated named insureds involved in such risk

- B. When two or more buildings are situated at the same general location, the Company shall identify on its records at the time of acceptance by the Company, those individual buildings and all insurable values contained therein that are considered to constitute each risk. If such identification is not made, each building and all insurable values contained herein shall be considered to be a separate risk.
- C. A risk shall be determined from the standpoint of the predominant peril and such peril shall be noted in the Company's records.

11. RIGHT OF MANAGEMENT CLAUSE

The REINSURED's right to manage its own affairs shall not be restricted by this Agreement. The REINSURED shall in particular be free to handle claims by acknowledging or contesting them or settling them by compromise. The REINSURED shall act in such a manner as would a competent insurer who was not reinsured.

12. ARBITRATION CLAUSE

All matters in difference between the REINSURED and the REINSURER (hereinafter referred to as "the parties" in relation to this Agreement, including its formation and validity, and whether arising during or after the period of this Agreement, shall be referred to an arbitration tribunal in the manner hereinafter set out.

Unless the parties agree upon a single arbitrator within thirty days of one receiving a written request from the other for arbitration, the claimant (the party requesting arbitration) shall appoint his arbitrator and give written notice thereof to the respondent. Within thirty days of receiving such notice the respondent shall appoint his arbitrator and give written notice thereof to the claimant, failing which the claimant may apply to the Appointor hereinafter named to nominate an arbitrator on behalf of the respondent.

Should the arbitrators fail to agree, then they shall within thirty days of such disagreement appoint an umpire to whom the matter in difference shall be referred. Should the arbitrators fail within such period to appoint an umpire, then either of them or either of the parties may apply to the Appointor for the appointment of the umpire.

Unless the parties otherwise agree, the arbitration tribunal shall consist of persons employed or engaged in a senior position in insurance or reinsurance underwriting.

The arbitration tribunal shall have power to fix all procedural rules for the holding of the arbitration including discretionary power to make orders as to any matters which it may consider proper in the circumstances of the case with regard to pleadings, discovery, inspection of documents, examination of witnesses and any other matter whatsoever relating to the conduct of the arbitration and may receive and act upon such evidence whether oral or written strictly admissible or not as it shall in its discretion think fit.

The Appointor shall be the Chairman or in his absence or inability to act, the acting Chairman of the council of Insurance Association in Indonesia.

All costs of the arbitration shall be in the discretion of the arbitration tribunal who may direct to and by whom and in what manner they shall be paid.

The arbitration Agreement shall be construed as a separate contract between the parties hereto and arbitration hereunder shall be a condition precedent to the commencement of any action at law.

The seat of the arbitration tribunal shall be in Jakarta, Indonesia and the arbitration tribunal shall apply the laws of Indonesia as the proper law of this Agreement.

The award of the arbitration tribunal shall be in writing and binding upon the parties who covenant to carry out the same. If either of the parties should fail to carry out any award the other may apply for its enforcement to a court of competent jurisdiction in any territory in which the party in default is domiciled or has assets or carries on business.

13. GOVERNING LAW CLAUSE

The laws of Indonesia shall be the proper law for this Agreement and the REINSURER undertakes to submit to the jurisdiction of the Courts of Indonesia in respect of any matter relating to or arising out of this Agreement but nothing herein contained shall be held to detract from the force of the provision/condition of "Arbitration" as aforesaid.

14. AMENDMENTS, SPECIAL ACCEPTANCES, AND/OR SPECIAL AGREEMENTS

Any amendment and/or alteration to this Agreement that are agreed either by correspondence and/or Broker's slip endorsements shall be automatically binding hereon and unless otherwise agreed by the parties hereto shall be documented by an exchange of correspondence signed by the parties or by issue of a contract addendum which shall be considered to form an integral part hereof.

Amendments and/or Special Acceptances and/or Special Agreements, if any, to be agreed only by the LEAD REINSURER specified in the Schedule and binding on all following REINSURERS. Renewals of Special Acceptances are automatically agreed by LEAD REINSURER. New REINSURERS hereon to abide by Special Agreements and/or Special Acceptances made prior to their participation.

15. ACCESS TO RECORD CLAUSE

Upon request, the REINSURED shall furnish the REINSURER with detailed information on the risks reinsured under this Agreement. In particular, the REINSURER shall be entitled to request that:

- Copies of the whole or part of any documents relating to the risks and their reinsurance be made available to it at its own expense
- During the REINSURED's normal office hours, the documents mentioned above be made available to a representative of the REINSURER who shall be named in advance; notification of such visits shall normally be given two weeks in advance and even in urgent cases at least two working days in advance.

The REINSURER shall have this right to information as long as one of the two parties to this Agreement is claiming from the other.

16. ERRORS AND OMISSIONS

Any error or omission in connection with this Agreement shall not modify any rights or duties under this Agreement. In particular, such an error or omission will neither release a party from its contractual liability, increase or extend a party's liability nor override any other specific terms of this Agreement. For the purposes of this clause, "error or omission" shall only mean an administrative or clerical error or omission. Such an error or omission must be rectified immediately upon discovery. Any other failure to comply with the terms and

conditions of this Agreement shall not be an error or omission, and shall in no event modify any rights or duties under this Agreement.

17. SEVERAL LIABILITY CLAUSE (LSW 1001 REINSURANCE)

The subscribing REINSURERS' obligation under contracts of reinsurance to which they subscribe are several and not joint and are limited solely to the extent of their individual subscriptions. The subscribing REINSURERS are not responsible for the subscription of any co-subscribing REINSURER who for any reason does not satisfy all or part of its obligations.

18. EVENT DEFINITION SR 460 (applicable to Sections 1, 2 and 5 only)

- 1) For the purposes of this reinsurance agreement, an event shall include all insured losses which arise directly from the same cause and which occur during the same period of time and in the same area. Such cause is understood to be the peril which directly occasions the losses or where there are several perils which, in an unbroken chain of causation, have occasioned the losses, the peril which triggered the chain of causation.

For example, as long as they are covered by this reinsurance agreement, losses occasioned by the perils set out below at letters a) to f) shall constitute single events:

- a) Storm due to an atmospheric disturbance usually so designated by a meteorological institute;
 - b) Hail and/or thunderstorms and/or tornadoes due to an atmospheric disturbance;
 - c) Earthquake, tsunami, volcanic eruption;
 - d) Flood by one and the same instance of high water which may have more than one peak and which may occur in one or more bodies of water;
 - e) Conflagration;
 - f) Strike, riot, civil commotion or violent demonstration occurring within the boundaries of one city, town or village.
- 2) If the number of events cannot be determined according to paragraph 1, the following hours clause is then applied. An event shall thus encompass a continuous period of time starting with this occurrence of the reinsured's first individual loss and lasting
 - 24 hours for perils mentioned under 1 (b)
 - 72 hours for perils mentioned under 1 (a), (e) and (f)
 - 504 hours for perils mentioned under 1 (d)
 - 168 hours for perils mentioned under 1 (c) as well as those perils not referred to in paragraph 1 but covered by this reinsurance agreement.

In the case of differing perils which are not connected to each other by an unbroken chain of causation, the applicable number of hours corresponds to those of the peril which has caused the largest amount of damages.

- 3) In the case of more than one event, if it is impossible to allocate any losses, the reinsured shall allocate them to the event whose cause is most likely to have occasioned them.

In case of uncertainty over scientific issues, the parties agree to seek expert advice from a neutral and recognised organisation.

b) Applicable to Section 3 only

The term "event" shall mean a loss and/or series of losses arising out of one event or original cause.

c) Applicable to Section 4 only

The Reinsured shall be the sole judge as to what constitutes one event.

19. PROPERTY DAMAGE CLARIFICATION CLAUSE

Property damage covered under this Agreement shall mean physical damage to the substance of property.

Physical damage to the substance of property shall not include damage to data or software, in particular any detrimental change in data, software or computer programs that is caused by a deletion, a corruption or a deformation of the original structure.

Consequently, the following are excluded from this Agreement:

- A. Loss or damage to data or software, in particular any detrimental change in data, software or computer programs that is caused by a deletion, a corruption or a deformation of the original structure and any business interruption losses resulting from such loss or damage. Notwithstanding this exclusion, loss of or damage to data or software which is the direct consequence of insured physical damage to the substance of property shall be covered.
- B. Loss or damage resulting from an impairment in the function, availability, range of use or accessibility of data, software or computer programs and any business interruption losses resulting from such loss or damage.

20. INSTITUTE EXTENDED RADIOACTIVE CONTAMINATION EXCLUSION CLAUSE

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith

- 1. In no case shall this insurance cover loss damage liability or expense directly or indirectly caused by or contributed to by or arising from
 - 1.1 ionising radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel
 - 1.2 the radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation, reactor or other nuclear assembly or nuclear component thereof
 - 1.3 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter

- 1.4 the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter. The exclusion in this sub-clause does not extend to radioactive isotopes, other than nuclear fuel, when such isotopes are being prepared, carried, stored, or used for commercial, agricultural, medical, scientific or other similar peaceful purposes.

21. INSTITUTE BIO-CHEMICAL CLAUSE 365

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith

In no case shall this insurance cover loss damage liability or expense directly or indirectly caused by or contributed to by or arising from

- 1.1 any chemical, biological, bio-chemical or electromagnetic weapon
- 1.2 the use or operation, as a means for inflicting harm, of any computer, computer system, computer software programme, computer virus or process or any other electronic system.

CL.365

22. PARAMOUNT WAR CLAUSE (Applicable to Section 4 only)

War risks in respect of cargo interests are covered as in the original policy or policies, but subject to the reassured applying the limitations of the United Kingdom Waterborne Agreement dated 01.01.1982 and any subsequent amendment thereto.

The acceptance of war risks under this contract/treaty is at all times subject to seven days' notice of cancellation given by either party; such period of notice to commence not later than three days from the date of notice given by the reinsurer.

23. WAR AND CIVIL WAR EXCLUSION CLAUSE – LIRMA G51 (Amended)

This Agreement does not cover any liability assumed by the Reinsured for loss or damage directly or indirectly occasioned by, happening through or in consequence of war, invasion, acts of foreign enemies, hostilities or war-like operations (whether war be declared or not), civil war, mutiny, civil commotion assuming the proportions of or amounting to popular rising, military rising, insurrection, rebellion, revolution, military or usurped power, martial law, confiscation or nationalisation or requisition or destruction of or damage to property by or under the order of any Government or public or local authority.

24. NUCLEAR ENERGY RISKS EXCLUSION CLAUSE NMA 1975a

This Agreement shall exclude Nuclear Energy Risks whether such risks are written directly and/or by way of reinsurance and/or via Pools and/or Associations.

For all purposes of this agreement Nuclear Energy Risks shall mean **all first party and/or third party insurances or reinsurances (other than Workers' Compensation and Employers' Liability) in respect of:**

- I All **Property**, on the site of a nuclear power station.

Nuclear Reactors, reactor buildings and plant and equipment therein on any site other than a nuclear power station.

- II All **Property**, on any site (including but not limited to the sites referred to in I above) used or having been used for:
- (a) The generation of nuclear energy; or
 - (b) The **Production, Use or Storage of Nuclear Material**.
- III Any other **Property** eligible for insurance by the relevant local Nuclear Insurance Pool and/or Association but only to the extent of the requirements of that local Pool and/or Association.
- IV The supply of goods and services to any of the sites, described in I to III above, unless such insurances or reinsurances shall exclude the perils of irradiation and contamination by **Nuclear Material**.

Except as undernoted, Nuclear Energy Risks shall not include:

- (i) Any insurance or reinsurance in respect of the construction or erection or installation or replacement or repair or maintenance or decommissioning of **Property** as described in I to III above (including contractors' plant and equipment);
- (ii) Any Machinery Breakdown or other Engineering insurance or reinsurance not coming within the scope of (i) above.

Provided always that such insurance or reinsurance shall exclude the perils of irradiation and contamination by **Nuclear Material**.

However, the above exemption shall not extend to:-

1. The provision of any insurance or reinsurance whatsoever in respect of:-
 - (a) **Nuclear Material**;
 - (b) Any **Property** in the **High Radioactivity Zone or Area** of any **Nuclear Installation** as from the introduction of **Nuclear Material** or - for reactor installations - as from fuel loading or first criticality where so agreed with the relevant local Nuclear Insurance Pool and/or Association.
2. The provision of any insurance or reinsurance for the undernoted perils:
 - Fire, lightning, explosion;
 - Earthquake;
 - Aircraft and other aerial devices or articles dropped therefrom;
 - Irradiation and radioactive contamination;
 - Any other peril insured by the relevant local Nuclear Insurance Pool and/or Association;

in respect of any other **Property** not specified in 1 above which directly involves the **Production, Use or Storage of Nuclear Material** as from the introduction of **Nuclear Material** into such **Property**.

Definitions

"Nuclear Material" means:

- (i) Nuclear fuel, other than natural uranium and depleted uranium, capable of producing energy by a self-sustaining chain process of nuclear fission outside a **Nuclear Reactor**, either alone or in combination with some other material; and
- (ii) **Radioactive Products or Waste**.

"Radioactive Products or Waste" means any radioactive material produced in, or any material made radioactive by exposure to the radiation incidental to the production or utilisation of nuclear fuel, but does not include radioisotopes which have reached the final stage of fabrication so as to be usable for any scientific, medical, agricultural, commercial or industrial purpose.

"Nuclear Installation" means:

- (i) Any **Nuclear Reactor**;
- (ii) Any factory using nuclear fuel for the production of **Nuclear Material**, or any factory for the processing of **Nuclear Material**, including any factory for the reprocessing of irradiated nuclear fuel; and
- (iii) Any facility where **Nuclear Material** is stored, other than storage incidental to the carriage of such material.

"Nuclear Reactor" means any structure containing nuclear fuel in such an arrangement that a self-sustaining chain process of nuclear fission can occur therein without an additional source of neutrons.

"Production, Use or Storage of Nuclear Material" means the production, manufacture, enrichment, conditioning, processing, reprocessing, use, storage, handling and disposal of **Nuclear Material**.

"Property" shall mean all land, buildings, structures, plant, equipment, vehicles, contents (including but not limited to liquids and gases) and all materials of whatever description whether fixed or not.

"High Radioactivity Zone or Area" means:

- (i) For nuclear power stations and **Nuclear Reactors**, the vessel or structure which immediately contains the core (including its supports and shrouding) and all the contents thereof, the fuel elements, the control rods and the irradiated fuel store; and
- (ii) For non-reactor **Nuclear Installations**, any area where the level of radioactivity requires the provision of a biological shield.

10/3/94
NMA1975(a)

25. NUCLEAR EXCLUSION SR 482

This Agreement shall not apply to the following:

- i) Nuclear energy risks in accordance with the Nuclear Energy Risks Exclusion Clause NMA 1975a and
- ii) Any other liability, loss, cost or expense of whatsoever nature directly or indirectly caused by, resulting from, arising out of or in connection with nuclear reaction, nuclear radiation or radioactive contamination regardless of any other cause contributing concurrently or in any other sequence to the loss, save where such liability, loss, cost or expense arises under insurances or reinsurances expressly exempted from NMA 1975a in respect of which the Reinsured has specifically granted cover.

26. WAR INCLUSION CLAUSE (MARINE) (Applicable to Section 4 only)

This Agreement includes loss, damage, liability or expense caused by resulting from the risks of War as covered in the original policy/policies provided that such loss, damage, liability or expense would be recoverable under the terms and conditions of the relevant Institute War Clauses or the War sections of the relevant Institute War and Strikes Clause in current use at the inception of this Agreement or at the time when War risks cover would have commenced under the original insurance within the terms of these clauses, whichever is earlier, except that if the risk of War are covered in the original policy/policies under clauses approved by the London Hull War Risks Joint Sub-Committee or in respect of cargo interests under the Standard War Risk Clauses of any country which complies with the limitations of the United Kingdom Waterborne Agreement the following two paragraphs shall apply.

27. AGGREGATE VOYAGE EXTENSION CLAUSE (CARGO) (Applicable to Section 4 only)

- 1 Where cargo business is included in the schedule as reinsured hereunder the reassured may, if it requires, aggregate cargo losses of the same nature (including liability for such loss or damage and related expenses including general average contribution, salvage charges and expenses incurred to avert or minimize such loss or damage) and treat them as losses arising from one event provided that
 - 1.1 it is not possible to determine the quantum of loss applicable to separate events, and that
 - 1.2 such losses are in respect of cargo carried in the same vessel for the same or an overlapping voyage.
- 2 The date of loss in such cases shall be deemed to be the date of arrival at the port of discharge of such cargo or the date of discovery of loss if earlier. If such cargo is discharged at more than one port, the date of loss shall be deemed to be the date of arrival at the first port of discharge or the date of discovery of loss if earlier.
- 3 Claims paid by the reassured in respect of any interests other than cargo as described above are specifically excluded from the protection afforded by this clause.
- 4 The reinsurers' liability hereunder in respect of any one such aggregate loss is subject to the terms, conditions and exclusions of this Contract, and shall not exceed the limit of reimbursement provided herein in respect of each loss.

28. EDRC (B) (AMENDED) – TO BE AGREED BY REINSURERS**SECTION 1**

This reinsurance does not cover any loss, damage, cost, claim or expense, whether preventative, remedial or otherwise, directly or indirectly arising out of or relating to:

- (a) the calculation, comparison, differentiation, sequencing or processing of data involving the date change to the year 2000, or any other date change, including leap year calculations, by any computer system, hardware, programme or software and/or any microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the insured or not; or
- (b) any change, alteration or modification involving the date change to the year 2000 or any other date change, including leap year calculations, to any such computer system, hardware, programme or software or any microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the insured or not.

This clause applies regardless of any other cause or event that contributes concurrently or in any sequence to the loss, damage, cost, claim or expense.

However this section shall not apply in respect of physical damage occurring at the insured's premises arising out of the perils of fire, lightning, explosion, aircraft or vehicle impact, falling objects, windstorm, hail, tornado, hurricane, cyclone, riot, strike, civil commotion, vandalism, malicious mischief, earthquake, volcano, tsunami, freeze or weight of snow.

SECTION 2

Notwithstanding Section 1 above, this reinsurance does not cover any costs and expenses, whether preventative, remedial or otherwise, arising out of or relating to change, alteration or modification of any computer system, hardware, programme or software or any microchip, integrated circuit or similar device in computer or non-computer equipment, whether the property of the insured or not.

SECTION 3

The date change to the year 2000, or any other date change, including leap year calculations, shall not in and of itself be regarded as an event for the purposes of this reinsurance.

29. INDUSTRIES, SEEPAGE, POLLUTION AND CONTAMINATION CLAUSE NO. 3

This Insurance does not cover any liability for:

1. Personal Injury or Bodily Injury or loss of, damage to, or loss of use of property directly or indirectly caused by seepage, pollution or contamination, provided always that this paragraph 1. shall not apply to liability for Personal Injury or Bodily Injury or loss of or physical damage to or destruction of tangible property, or loss of use of such property damaged or destroyed, where such seepage, pollution or contamination is caused by a sudden, unintended and unexpected happening during the period of this Insurance.
2. The cost of removing, nullifying or cleaning-up seeping, polluting or contaminating substances unless the seepage, pollution or contamination is caused by a sudden, unintended and unexpected happening during the period of this Insurance.
3. Fines, penalties, punitive or exemplary damages.

This Clause shall not extend this Insurance to cover any liability which would not have been covered under this Insurance had this Clause not been attached.

22/1/70
NMA1685

30. TOTAL ASBESTOS EXCLUSION

It is hereby understood and agreed that this contract shall not apply to and does not cover any actual or alleged liability whatsoever for any claim or claims in respect of loss or losses directly or indirectly arising out of, resulting from or in consequence of asbestos, in whatever form or quantity.

31. CURRENCY FLUCTUATION CLAUSE

All payments under this Reinsurance Agreement shall be made in the currency or currencies specified in the Contractual Details. Amounts in any currency other than the currency or currencies in which this Reinsurance Agreement is written shall be converted at the respective rates of exchange adopted by the Reinsured, or where there is a specific remittance for a loss settlement, at the rates of exchange used in making such remittance, as calculated in accordance with the Currency Fluctuation clause.

1. In the event that the Reinsured sustains a loss in a single currency other than Indonesian Rupiah (IDR) or United States Dollars (USD), the Reinsurers' liability shall be calculated as follows:
 - a. The deductible and the limit of indemnity as expressed in USD shall be converted into the appropriate currency at the Rate of Exchange applicable at the inception date of this Agreement.
 - b. The balance of any loss payment in excess of the original currency deductible shall at the option of the Reinsured be paid in the currency in which the loss was settled or shall be converted from the currency in which the loss was settled into USD at the Rate of Exchange as used by the Reinsured and ruling on the date or dates of settlement of the loss by the Reinsured.
2. In the event that the Reinsured sustains a multi currency loss, the Reinsurers' liability and the apportionment of the ultimate net loss attributable to each currency shall be calculated as follows:
 - a. The deductible and the limit of indemnity as expressed in USD shall be converted into the appropriate currencies (other than IDR) at the Rates of Exchange applicable at the inception date of this Agreement.
 - b. To establish the percentage that each currency involved in the loss bears to the total loss the content of the loss in IDR shall be converted into USD at a Rate of Exchange as specified in the attached Contractual Details, and the content of the loss in currencies other than IDR and USD shall be converted into USD at the Rate(s) of Exchange applicable at the inception date of this Agreement.
 - c. The percentage that each currency loss calculated under 2.b. bears to the total loss in USD shall be applied to the relevant currency indemnity and deductible and the ultimate net loss in each currency shall then be applied to the apportioned indemnity and deductible in order to establish Reinsurers' loss in each currency.

The provisions of 2.a. shall then be applied to currencies other than IDR and USD.

3. For the purposes of ascertaining the utilisation of the aggregate indemnity including reinstatements provided hereon, the original currency losses to this Agreement shall be converted into USD at the Rate of Exchange ruling at the inception date of this Agreement (as regards IDR this exchange rate is deemed to be as specified in the attached Contractual Details). The aggregate amount of USD losses so calculated shall be related to the USD aggregate indemnity including reinstatements applicable hereon.

32. CLAIMS CLAUSE

Notification of Losses:

The REINSURED undertakes to advise the REINSURER as soon as possible of any circumstances likely to give rise to a claim under this Agreement together with an estimate of the REINSURER's liability and thereafter keep the REINSURER fully informed of any significant developments likely to affect the cost of any claim or claims hereunder.

The REINSURED will provide the REINSURER with a summary of all outstanding losses at least once a year as at the anniversary date.

Loss Settlement:

The REINSURED may *in consultation with leader* commence, investigate, continue, defend, compromise, settle or withdraw from actions, suits or proceedings and generally do all such matters and things relating to any claim or loss as in its judgement may be beneficial or expedient to both parties of this Agreement and all payments made and costs and expenses incurred therewith shall be shared by the REINSURER.

All loss settlements made by the REINSURED, provided they are within the terms of the original insurances and/or reinsurances and within the terms of this Reinsurance, including those settled by way of compromise *with leader's agreement* shall be binding on the REINSURER and amounts falling to the share of the REINSURER shall be payable by them.

The REINSURER shall remit its share of all loss payments within thirty days of receiving a request from the REINSURED to do so.

33. LIABILITY EXCLUSION CLAUSE – A

- 1 This Contract excludes claims in respect of sums which any direct assured becomes liable to pay to any other party.
- 2 Notwithstanding the foregoing this clause shall not exclude claims arising from
 - 2.1 the ownership, management, operation or chartering of marine or inland waterway vessels, craft or units;
 - 2.2 the construction, repair or demolition of marine or inland waterway vessels, craft or units and all related components;
 - 2.3 operations in respect of bridges, tunnels, seawalls, marine terminals, ports, harbours, wharves, piers, jetties, docks, berths, pontoons, marinas, fish farms, stevedores, divers, marine agents and boat dealers;
 - 2.4 offshore exploration, drilling or production, including all related construction operations;
 - 2.5 construction, refurbishment, conversion or demolition, but in respect of onshore risks only where policies contain a discovery or cut-off clause effective no more

- than 36 months after expiry of the policy and any completed operations cover afforded therein;
- 2.6 the ownership, management or operation of aircraft or airports;
 - 2.7 construction of aircraft and all related components;
 - 2.8 transit, and storage in the ordinary course of transit, of cargo by sea or air, and by land conveyance other than pipeline;
 - 2.9 onshore workers' compensation or employers' liability losses arising from the following perils:
fire, lightning, explosion, structural collapse, windstorm, hail, flood, seismic activity, volcanic eruption, collision, riots, strikes, civil commotion, malicious damage;
 - 2.10 any cover for physical loss, damage or consequential loss contingent thereon effected by a direct assured on behalf of another party;
 - 2.11 professional indemnity and errors and omissions directly related to:
owning or handling ships, cargoes or goods in transit
classification societies or marine surveyors.
- 3 The reinsurers' liability hereunder is subject to the terms, conditions and exclusions of this Contract, and shall not exceed the limit of reimbursement provided herein in respect of each loss.

34. LIABILITY EXCLUSION CLAUSE – B

- 1 This Contract excludes claims in respect of sums which any direct assured becomes liable to pay to any other party, unless arising from those policies underwritten by the direct insurer on a "claims made" or "losses discovered" basis, and then only where the claim, or notification of the event giving rise to the claim, is "made" or loss "discovered" during the period of this Contract.
- 2 Notwithstanding the foregoing this clause shall not exclude claims arising from
 - 2.1 the ownership, management, operation or chartering of marine or inland waterway vessels, craft or units;
 - 2.2 the construction, repair or demolition of marine or inland waterway vessels, craft or units and all related components;
 - 2.3 operations in respect of bridges, tunnels, seawalls, marine terminals, ports, harbours, wharves, piers, jetties, docks, berths, pontoons, marinas, fish farms, stevedores, divers, marine agents and boat dealers;
 - 2.4 offshore exploration, drilling or production, including all related construction operations;
 - 2.5 construction, refurbishment, conversion or demolition, but in respect of onshore risks only where policies contain a discovery or cut-off clause effective no more than 36 months after expiry of the policy and any completed operations cover afforded therein;
 - 2.6 the ownership, management or operation of aircraft or airports;
 - 2.7 construction of aircraft and all related components;
 - 2.8 transit, and storage in the ordinary course of transit, of cargo by sea or air, and by land conveyance other than pipeline;
 - 2.9 onshore workers' compensation or employers' liability losses arising from the following perils:
fire, lightning, explosion, structural collapse, windstorm, hail, flood, seismic activity, volcanic eruption, collision, riots, strikes, civil commotion, malicious damage;
 - 2.10 any cover for physical loss, damage or consequential loss contingent thereon effected by a direct assured on behalf of another party.

- 3 Notwithstanding anything contained herein to the contrary, this Contract excludes: directors' and officers' liability;
- liability under the Securities Exchange Act;
professional indemnity and errors and omissions, unless directly related to:
owning or handling ships, cargoes or goods in transit ; classification societies or marine surveyors.
- 4 The reinsurers' liability hereunder is subject to the terms, conditions and exclusions of this Contract, and shall not exceed the limit of reimbursement provided herein in respect of each loss.

35. JOINT EXCESS LOSS COMMITTEE TERRORISM EXCLUSION CLAUSE (Applicable to Section 4 only)

This contract excludes any loss, damage, liability or expense arising from:

- (a) terrorism; and or
- (b) steps taken to prevent, suppress, control or reduce the consequences of any actual, attempted, anticipated, threatened, suspected or perceived terrorism.

For the purpose of this clause, "terrorism" means any act(s) of any person(s) or organisation(s) involving:

- (i) the causing, occasioning or threatening of harm of whatever nature and by whatever means;
- (ii) putting the public or any section of the public in fear, in circumstances in which it is reasonable to conclude that the purpose(s) of the person(s) or organisation(s) concerned are wholly or partly of a political, religious, ideological or similar nature.

This clause shall not apply to the following:

- 1 any loss, damage, liability, or expense arising from the ownership, financing, management, operation or chartering of:
 - 1.1 vessels, craft, and units, whilst offshore, afloat, under construction or repair, in dock, or in store ashore;
 - 1.2 seawalls, wharves, piers, jetties, docks, berths, pontoons, and associated dockside equipment all whilst within the confines of the port, terminal, shipyard, harbour, or marina;
 - 1.3 platforms, facilities, and associated equipment, whilst offshore, or whilst in, on or under any navigable waters, including all related construction or repair operations;
 - 1.4 pipelines and cables whilst offshore, or whilst in, on or under any navigable waters, (other than whilst in tunnels) including all related construction or repair operations whilst offshore, or whilst in, on or under any navigable waters.
- 2 any loss, damage, liability or expense arising from the carriage, shipment or storage of:
 - 2.1 cargo or specie in the ordinary course of transit in accordance with the Joint Cargo Committee Termination of Transit Clause (Terrorism) JC2001/056;
 - 2.2 cargo or specie where the proximate cause of loss is theft.

36. TERRORISM EXCLUSION ENDORSEMENT- (Reinsurance) NMA 2921 (08/10/2001) (not applicable to Section 4)

Notwithstanding any provision to the contrary within this reinsurance or any endorsement thereto, it is agreed that this reinsurance excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

For the purpose of this endorsement an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organization(s) or government (s) committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This endorsement also excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to any act of terrorism.

If the Reinsurers allege that by reason of this exclusion, any loss, damage, cost or expense is not covered by this reinsurance the burden of proving the contrary shall be upon the Reassured.

In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

37. COMMUNICABLE DISEASE EXCLUSION (PROPERTY TREATY REINSURANCE) (applicable to Section 1 only)

1. Notwithstanding any provision to the contrary within this reinsurance agreement, this reinsurance agreement excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease regardless of any other cause or event contributing concurrently or in any other sequence thereto.
2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
 - 2.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
 - 2.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
 - 2.3. the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

LMA5394
27 March 2020

38. COMMUNICABLE DISEASE EXCLUSION (For use on power generation, construction and engineering policies) (applicable to Section 2 only)

1. Notwithstanding any provision to the contrary within this insurance, this insurance does not insure any loss, damage, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease regardless of any other cause or event contributing concurrently or in any other sequence thereto.
2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
 - 2.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
 - 2.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
 - 2.3. the disease, substance or agent can cause or threaten bodily injury, illness, damage to human health, human welfare or property.

LMA5397
29 April 2020

39. COMMUNICABLE DISEASE EXCLUSION (For use on liability policies) (applicable to Section 3 only)

1. Notwithstanding any provision to the contrary within this policy, this policy does not cover all actual or alleged loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.
2. For the purposes of this endorsement, loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test for a Communicable Disease.
3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
 - 3.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
 - 3.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
 - 3.3. the disease, substance or agent can cause or threaten bodily injury, illness, emotional distress, damage to human health, human welfare or property damage.

LMA5396
17 April 2020

**40. CORONAVIRUS EXCLUSION (for use on marine and energy liability policies)
(applicable to Section 4 only)**

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith.

This insurance excludes coverage for:

- 1) any loss, damage, liability, cost, or expense directly arising from the transmission or alleged transmission of:
 - a) Coronavirus disease (COVID-19);
 - b) Severe Acute Respiratory Syndrome Coronavirus 2 (SARS-CoV-2); or
 - c) any mutation or variation of SARS-CoV-2; or from any fear or threat of a), b) or c) above;
- 2) any liability, cost or expense to identify, clean up, detoxify, remove, monitor, or test for a), b) or c) above;
- 3) any liability for or loss, cost or expense arising out of any loss of revenue, loss of hire, business interruption, loss of market, delay or any indirect financial loss, howsoever described, as a result of any of a), b) or c) above or the fear or the threat thereof.

All other terms, conditions and limitations of the insurance remain the same.

LMA5395
09 April 2020

41. INTERMEDIARY CLAUSE

Guy Carpenter, a division of PT. Marsh Reinsurance Brokers Indonesia, is hereby recognized as the Intermediary negotiating this Contract for all business hereunder. All communications (including notices, statements, premiums, return premiums, commissions, taxes, losses, loss expense, salvages, and loss settlements) relating thereto shall be transmitted to the Reinsured or the Reinsurer through: - (a) Guy Carpenter, a division of PT. Marsh Reinsurance Brokers Indonesia, World Trade Center 3, 16th Floor, Jl. Jend. Sudirman Kav. 29-31, Jakarta 12920, Indonesia; and (b) Guy Carpenter, 8 Marina View #09-06, Asia Square Tower 1, Singapore 018960

42. WAR AND CIVIL WAR EXCLUSION CLAUSE – NMA 464

Notwithstanding anything to the contrary contained herein this Policy does not cover Loss or Damage directly or indirectly occasioned by, happening through or in consequence of war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power or confiscation or nationalisation or requisition or destruction of or damage to property by or under the order of any government or public or local authority.

43. SACTION LIMITATION AND EXCLUSION CLAUSE – LMA 3100

No (re)insurer shall be deemed to provide cover and no (re)insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations resolutions or the trade or

economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

44. EXTRA CONTRACTUAL OBLIGATIONS EXCLUSION ENDORSEMENT CLAUSE

Notwithstanding anything contained in the Policy to the Contrary, it is hereby noted and agreed that this Policy does not provide cover in respect of extra-contractual obligations being defined as any award made by court of competent jurisdiction against the insurer, which award is not within the coverage granted by any insurance contract made between the parties in dispute.

Subject to otherwise to the terms and conditions of the policy.

45. ELECTRONIC DATE RECOGNITION ENDORSEMENT CLAUSE (A) – NMA 2800

This Contract does not cover any loss, damage, cost, claim or expense, whether preventative, remedial or otherwise, directly or indirectly arising out of or relating to:

- a. the calculation comparison, differentiation, sequencing or processing of data involving the date change to the year 2000, or any other date change, including leap year calculations, by any computer system, hardware, programme or software and/or any microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the insured or not; or
- b. any change, alteration or modification involving the date change to the year 2000 or any other date change, including leap year calculations, to any such computer system, hardware, programme or software or any microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the insured or not.

This Clause applies regardless of any other cause or event that contributes concurrently or in any sequence to the loss, damage, cost, claim or expense.

15/12/97
NMA 2800

46. IT HAZARD CLARIFICATION CLAUSE NMA 2912

Losses arising, directly or indirectly out of

- i. loss of, alternation of, or damage to, or
- ii. a reduction in the functionality, availability or operation of

A computer system, hardware, programme, software, data, information repository, microchip, integrated circuit or similar device in computer equipment or non computer equipment, whether the property of the policy holder of the reinsured or not, do not in and of themselves constitute an event unless arising out of one or more of the following perils:

fire, lighting, explosion, aircraft or vehicle impact, falling objects, windstorm, hail, tornado, cyclone, hurricane, earthquake, volcano, tsunامي, flood, freeze or weight of snow.

47. CYBER EXCLUSION CLAUSE – NMA 2915**1. Electronic Data Exclusion**

Notwithstanding any provision to the contrary within the Policy or any endorsement thereto, it is understood and agreed as follows:

- (a) This Policy does not insure loss, damage, destruction, distortion, erasure, corruption or alteration of ELECTRONIC DATA from any cause whatsoever (including but not limited to COMPUTER VIRUS) or loss of use, reduction in functionality, cost, expense of whatsoever nature resulting therefrom, regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

ELECTRONIC DATA means facts, concept and information converted to a form useable for communications, interpretation or processing by electronic and electromechanical data processing or electronically controlled equipment and includes programmes, software and other coded instructions for the processing and manipulation of data or the direction and manipulation of such equipment.

COMPUTER VIRUS means a set of corrupting, harmful or otherwise unauthorised instructions or code including a set of maliciously introduced unauthorised instructions or code, programmatic or otherwise, that propagate themselves through a computer system or network of whatsoever nature. COMPUTER VIRUS includes but not limited to 'Trojan Horses', 'Worms' and 'Time or logic bombs'.

- (b) However, in the event that a peril listed below results from any of the matters described in paragraph (a) above, this policy, subject to all its time, conditions and exclusions, will cover physical damage occurring during the Policy period to property Insured by this Policy directly caused by such listed peril.

Listed Perils

Fire

Explosion

2. Electronic Data Processing Media Valuation Notwithstanding any provision to the contrary within the Policy or any endorsement thereto, it is understood and agreed as follows: Should electronic data processing media insured by this Policy suffer physical loss or damage insured by this Policy, then the basis of valuation shall be the cost of the blank media plus the cost of copying the ELECTRONIC DATA from back-up or from originals of a previous generation. These costs will not include research and engineering nor any cost of recreating, gathering or assembling such ELECTRONIC DATA. If the media is not repaired, replaced or restored the basis of valuation shall be the cost of the blank media. However this Policy does not insure any amount pertaining to the value of such ELECTRONIC DATA to the Assured or any other party, even if such ELECTRONIC DATA cannot be recreated, gathered or assembled.

48. COMMUNICABLE DISEASE EXCLUSION (CASUALTY TREATY REINSURANCE) - LMA 5399

1. Notwithstanding any provision to the contrary within this reinsurance agreement, this reinsurance agreement excludes all actual or alleged loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount incurred by or accruing to the reinsured, directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.

2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

2.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and

2.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and

2.3. the disease, substance or agent can cause or threaten bodily injury, illness, emotional distress or damage to human health, human welfare or property damage.

LMA5399

06 May 2020

49. ELECTRONIC DATE RECOGNITION ENDORSEMENT – C

This Endorsement shall prevail notwithstanding any provision whether written typed or printed in this Contract inconsistent herewith.

1. This Contract does not cover loss, damage, liability or expense arising from or in any way connected, whether directly or indirectly, with:

a) the actual or anticipated failure or inability of any computer or electronic device or component or system or software or embedded programming, whether or not belonging to or in the possession of the direct Assured;

i). correctly and unambiguously to assign any data to the correct day, week, year or century,

ii). correctly to recognise sequence or compute any date which is or is intended to be beyond 31st December 1998,

iii). to continue to operate as it would have done had its current date, the true date and other date relevant to any function being carried out by it been prior to 1st January 1999;

b) the use of any arbitrary, ambiguous or incompletely defined date or date like code in any data, software or embedded programming;

c) any measures taken whether preventative, remedial or otherwise with the intention of averting or minimising any of the above.

2. Notwithstanding 1.a) and 1.b) above this Contract shall be extended to include:

a) loss or damage arising from physical loss of physical damage to tangible property;

b) liability for actual or alleged bodily injury;

a) liability for physical loss of or physical damage to tangible property owned by another person and resulting loss of use of such physically lost or physically damaged property;

provided that such loss, damage or liability above is within the terms, conditions and exclusions of the original policy(ies) or Contract(s).

3. For the purposes of 2. above, tangible property shall not include:

a) any data or embedded programming however stored or conveyed;

b) any computer or electronic device or component or system or software, other than where such property forms part of an insured cargo or ship's machinery, which is in any way connected whether directly or indirectly with loss or damage claimed or from which such loss or damage arises.

4. This endorsement shall not include loss, damage, liability or expense arising from any Contract solely designed to cover losses arising from any matter referred to in 1. above.

50. TERMINATION OF TRANSIT CLAUSE (TERRORISM)

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith.

1 Notwithstanding any provision to the contrary contained in this Policy or the Clauses referred to therein, it is agreed that in so far as this Policy covers loss of or damage to the subject-matter insured caused by any terrorist or any person acting from a political motive, such cover is conditional upon the subject-matter insured being in the ordinary course of transit and, in any event, **SHALL TERMINATE:**

either

1.1 As per the transit clauses contained within the Policy,

Or

1.2 on delivery to the Consignee's or other final warehouse or place of storage at the destination named herein,

1.3 on delivery to any other warehouse or place of storage, whether prior to or at the destination named herein, which the Assured elect to use either for storage other than in the ordinary course of transit or for allocation or distribution,

or

1.4 in respect of marine transits, on the expiry of 60 days after completion of discharge overside of the goods hereby insured from the oversea vessel at the final port of discharge,

1.5 in respect of air transits, on the expiry of 30 days after unloading the subject-matter insured from the aircraft at the final place of discharge,

whichever shall first occur.

2 If this Policy or the Clauses referred to therein specifically provide cover for inland or other further transits following on from storage, or termination as provided for above, cover will re-attach, and continues during the ordinary course of that transit terminating again in accordance with clause **1** .

3 This clause is subject to English law and practice.

JC2001/056

20 November 2001

INFORMATION SECTION

INFORMATION

1) Estimated Gross Net Retained Premium Income

2014	IDR 59,000,000,000
2015	IDR 75,000,000,000
2016	IDR 80,000,000,000
2017	IDR 75,000,000,000
2018	IDR 80,000,000,000
2019	IDR 85,000,000,000
2020	IDR 95,000,000,000
2021	IDR 90,000,000,000
2022	IDR 90,000,000,000
2023	IDR 90,000,000,000
2024	IDR 90,000,000,000

2) Maximum Gross Retention Any One Risk / Conveyance (past 5 years):

2014	IDR 15,000,000,000	Fire
	IDR 10,000,000,000	Engineering
	IDR 10,000,000,000	Marine Cargo
	IDR 2,000,000,000	General Accident
	IDR 1,000,000,000	Motor Vehicle

2015	IDR 15,000,000,000	Fire
	IDR 10,000,000,000	Engineering
	IDR 10,000,000,000	Marine Cargo
	IDR 2,000,000,000	General Accident
	IDR 1,000,000,000	Motor Vehicle

2016	IDR 15,000,000,000	Fire
	IDR 12,500,000,000	Engineering
	IDR 12,500,000,000	Marine Cargo
	IDR 2,000,000,000	General Accident
	IDR 1,500,000,000	Motor Vehicle

2017	IDR 20,000,000,000	Fire
	IDR 20,000,000,000	Engineering
	IDR 20,000,000,000	Marine Cargo
	IDR 2,000,000,000	General Accident
	IDR 5,600,000,000	Money Insurance

2018	IDR 20,000,000,000	Fire
	For PT. Gudang Garam Group Account and BUMN (Stated Own Companies) business is IDR 40,000,000,000.00 in line with Proportional Treaty which using 50% PML basis.	
	IDR 20,000,000,000	Engineering
	IDR 20,000,000,000	Marine Cargo
	IDR 2,000,000,000	General Accident
	IDR 7,500,000,000	Money Insurance

2019

IDR	25,000,000,000	Fire
IDR	25,000,000,000	Engineering
IDR	25,000,000,000	Marine Cargo
IDR	2,000,000,000	General Accident
IDR	21,250,000,000	Money Insurance

2020

IDR	40,000,000,000	Fire
IDR	25,000,000,000	Engineering
IDR	25,000,000,000	Marine Cargo
IDR	5,000,000,000	General Accident
IDR	21,250,000,000	Money Insurance

2021

IDR	40,000,000,000	Fire
IDR	25,000,000,000	Engineering
IDR	25,000,000,000	Marine Cargo
IDR	5,000,000,000	General Accident
IDR	21,250,000,000	Money Insurance

2022

IDR	40,000,000,000	Fire
IDR	25,000,000,000	Engineering
IDR	25,000,000,000	Marine Cargo
IDR	5,000,000,000	General Accident
IDR	21,250,000,000	Money Insurance

2023

IDR	40,000,000,000	Fire
IDR	25,000,000,000	Engineering
IDR	21,250,000,000	Marine Cargo
IDR	5,000,000,000	General Accident
IDR	20,000,000,000	Money Insurance

2024

IDR	50,000,000,000	Fire
IDR	25,000,000,000	Engineering
IDR	21,250,000,000	Marine Cargo
IDR	5,000,000,000	General Accident
IDR	20,000,000,000	Money Insurance

- 3) Rate of exchange: USD 1.00 = IDR 15,000 (Currency Fluctuation Clause)
- 4) PSC Account – TRIPA is allowed to retain up to IDR 6 billion and protected under this Excess of Loss Programme.
- 5) Spillage Cover
It is hereby noted and agreed that this WAXL treaty will protect any excess of the Event Limit exceeding the Whole Account Quota Share and Surplus Treaty.

- 6) The Event Limit under the Whole Account Quota Share and Surplus Treaty:
- Earthquake Event Limit for 100% treaty – IDR 1,500,000,000,000
 - Flood Event Limit for 100% treaty – IDR 1,500,000,000,000
 - Event Limit for Riots, Strikes, Malicious Damage code 4.1A/2007 and/or 4.1B/2007 for 100% treaty – IDR 1,500,000,000,000

SECURITY DETAILS SECTION

REINSURERS LIABILITY

: Reinsurers Liability Clause LMA3333

Reinsurer's liability several not joint.

The liability of a Reinsurer under this contract is several and not joint with other Reinsurers party to this contract. A Reinsurer is liable only for the proportion of liability it has underwritten. A Reinsurer is not jointly liable for the proportion of liability underwritten by any other Reinsurer. Nor is a Reinsurer otherwise responsible for any liability of any other Reinsurer that may underwrite this contract.

The proportion of liability under this contract underwritten by a Reinsurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown next to its stamp. This is subject always to the provision concerning "signing" below.

In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is a Reinsurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other Reinsurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.

Proportion of liability

Unless there is "signing" (see below), the proportion of liability under this contract underwritten by each Reinsurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown next to its stamp and is referred to as its "written line".

Where this contract permits, written lines, or certain written lines, may be adjusted ("signed"). In that case a schedule is to be appended to this contract to show the definitive proportion of liability under this contract underwritten by each Reinsurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together). A definitive proportion (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of a Lloyd's syndicate taken together) is referred to as a "signed line". The signed lines shown in the schedule will prevail over the written lines unless a proven error in calculation has occurred.

Although reference is made at various points in this clause to “this contract” in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

ORDER HEREON : 100% of 100%

**BASIS OF
WRITTEN LINES** : Percentage of Whole

**SIGNING
PROVISIONS** : In the event that the written lines hereon exceed 100% of the order, any lines written “to stand” will be allocated in full and all other lines will be signed down in equal proportions so that the aggregate signed lines are equal to 100% of the order without further agreement of any of the Reinsurers.

However:

- a) in the event that the placement of the order is not completed by the commencement date of the period of Reinsurance then all lines written by that date will be signed in full;
- b) the Reinsured may elect for the disproportionate signing of Reinsurers’ lines, without further specific agreement of Reinsurers, providing that any such variation is made prior to the commencement date of the period of Reinsurance, and that lines written “to stand” may not be varied without the documented agreement of those Reinsurers;
- c) the signed lines resulting from the application of the above provisions can be varied, before or after the commencement date of the period of Reinsurance, by the documented agreement of the Reinsured and all Reinsurers whose lines are to be varied. The variation to the contracts will take effect only when all such Reinsurers have agreed, with the resulting variation in signed lines commencing from the date set out in that agreement.

LINE CONDITIONS : None unless specified individually by Reinsurers hereon under their written participations.

**MODE OF
EXECUTION** : This Agreement and any changes to it may be executed by:

- (a) electronic signature technology employing computer software and a digital signature or digitiser pen pad to capture a person’s handwritten signature in such a manner that the signature is unique to the person signing, is under the sole control of the person signing, is capable of verification to authenticate the signature and is linked to the document signed in such a manner that if the data is changed, such signature is invalidated;

- (b) a unique authorisation provided via a secure electronic trading platform;
- (c) a timed and dated authorisation provided via an electronic message/system;
- (d) an exchange of facsimile/scanned copies showing the original written ink signature of paper documents;
- (e) an original written ink signature of paper documents (or a true representation of a signature, such as a rubber stamp).;

The use of any one or a combination of these methods of execution shall constitute a legally binding and valid signing of this Agreement. This Agreement may be executed in one or more of the above counterparts, each of which, when duly executed, shall be deemed an original.

SUBSCRIPTION AGREEMENT SECTION

SLIP LEADER : The Leading Reinsurer is **PT Reasuransi Indonesia Utama (PERSERO)** and any reference to Leading Reinsurer in this slip shall be read accordingly.

BUREAU LEADER : Additional Responsibilities under this Contract Heading are restricted to setting out/agreeing Terms of Trade (being Settlement Due Date, Instalment Premium Period of Credit and Adjustment Premium Period of Credit).

LLOYD'S LEADER :

**BASIS OF
AGREEMENT TO
CONTRACT
CHANGES**

: Except as specifically detailed to the contrary in the Risk Details Section and/or Contractual Wording, additions, deletions and/or other amendments, alterations, modifications and Special Acceptances are to be agreed by ALL REINSURERS hereon (each in respect of its own participation only).

Wherever practicable, between the broker and each reinsurer which have at any time the ability to send and receive ACORD messages:

1. the broker agrees that any proposed contract change will be requested via an 'ACORD message' or using an ACORD enabled electronic trading platform;
2. whilst the parties may negotiate and agree any contract change in any legally effective manner, each relevant reinsurer agrees to respond via an appropriate 'ACORD message' or using an ACORD enabled electronic trading platform;
3. where a reinsurer has requested to receive notification of any contract change the broker agrees to send the notification via an 'ACORD message' or using an ACORD enabled electronic trading platform.

**BASIS OF CLAIMS
AGREEMENT**

: As specified under the CLAIMS AGREEMENT PARTIES and to be managed in accordance with:

- i) The SINGLE CLAIMS AGREEMENT PARTY ARRANGEMENTS - LMA9150 for claims or circumstances assigned as Single Claims Agreement Party Claims (SCAP Claims) or, where it is not applicable, then the following shall apply as appropriate:
- ii) The Lloyd's Claims Lead Arrangements, or as amended or any successor thereto.
- iii) IUA claims agreement practices.
- iv) The practices of any company(ies) electing to agree claims in respect of their own participation.

The applicable arrangements (scheme, agreement or practices) will be determined by the rules and scope of said arrangements and should be referred to as appropriate.

**CLAIMS
AGREEMENT
PARTIES**

- : (i) For Lloyd's syndicates:
The Leading Lloyd's syndicate and, where required by the applicable Lloyd's Claims Lead Arrangements, the second Lloyd's syndicate.
Second Lloyd's Syndicate:
- (ii) Those companies acting in accordance with the IUA claims agreement practices, excepting those that may have opted out via (iii) below.
- (iii) Those companies that have specifically elected to agree claims in respect of their own participation:
- (iv) All other subscribing insurers that are not party to the Lloyd's/IUA claims agreement practices, each in respect of their own participation

**CLAIMS
ADMINISTRATION**

- : Lloyd's Syndicates participating hereon authorise Xchanging Claims Services to waive the deferred settlement system in the event of a presentation of settlement request with first advice.

Electronic Claims Repositories may be utilised.

Guy Carpenter & Co. Ltd to enter claim advices into relevant market system(s). Reinsurers agree to receive notification of all advices and settlements individually. Lloyds Syndicates via Xchanging Claims Services and XIS members via CLASS.

**RULES AND
EXTENT OF ANY
OTHER DELEGATED
CLAIMS**

- AUTHORITY** : None, unless otherwise specified here by any of the claims agreement parties shown above.

**EXPERT(S) FEES
COLLECTION**

- : Xchanging 'Expert Fees Service (EFS)' to be service provider for all Contract security, including overseas.

**BUREAU
ARRANGEMENTS**

- : This Document constitutes the definitive record of this Contract of Reinsurance. Accordingly, no formal Policy shall be issued; thus, this Contract should be marked as Alternative Evidence of Cover (AEC); hence, no corresponding entry to appear within the 'Unsigned Policy Report' (UPR).

It is agreed that the Bureau are authorised to process premiums, premium adjustments, claims advices and collections and reinstatement premiums hereunder against the production of this original Document or designated copies of this Document.

Where possible the Intermediary shall submit de linked accounts. Premium Payment requirements deemed complied with if accounts are correctly released for settlement to Bureau in line with Bureau procedures on or before settlement due date.

The Bureau are authorised to accept premium figures as submitted by Guy Carpenter & Company Limited without production of supporting Documents.

**NON-BUREAUX
ARRANGEMENTS**

: Applicable only to those Reinsurers being Companies hereon (whose participations are not evidenced by a Bureau stamp).

On behalf of the above, this Document constitutes the definitive record of this Contract of Reinsurance. Accordingly, no formal Policy shall be issued.

**PREMIUM
PROCESSING
CLAUSE**

: Where the premium is to be paid through Xchanging Ins-sure Services (XIS), payment to (Re)Insurers will be deemed to occur on the day that a delinked premium is released for settlement by the Appointed Broker or in the case of non-delinked premiums, on the day that the error-free Premium Advice Note (PAN) is submitted to XIS.

Where premiums are to be paid by instalments under the Deferred Account Scheme, and the Appointed Broker does not receive the premium in time to comply with the agreed settlement date for the second or subsequent instalment, the Appointed Broker, if electing to suspend the automatic debiting of the relevant deferred instalment, shall advise the Slip Leader in writing and instruct XIS accordingly. XIS shall then notify (Re)Insurers. Payment to any entity within the same group of companies as the Appointed Broker will be deemed to be payment to the Appointed Broker.

Nothing in this clause shall be construed to override the terms of any Premium Payment Warranty or Clause or any Termination or Cancellation provision contained in this contract. Furthermore, any amendment to the Settlement Due Date of a premium instalment as a result of the operation of this Premium Processing Clause shall not amend the date that such instalment is deemed to be due for the purposes of such Premium Payment Warranty or Clause or Termination or Cancellation provision unless (Re)Insurers expressly agree otherwise.

14/12/09 LSW3003

Appointed Broker: Guy Carpenter & Company Limited

Reinsurers hereby note that automatic debiting of deferred instalments is suspended as per the Premium Processing Clause LSW3003. Instalments when received to be signed as additional premiums.

FISCAL AND REGULATORY SECTION

TAXES PAYABLE

BY REINSURER(S) : As stated under the heading "Taxes payable by Reinsurer(s) and Administered by the Reinsured or their Agent"

**COUNTRY OF
ORIGIN**

: Indonesia.

**OVERSEAS
BROKER**

:

**LICENCE
INFORMATION**

: It shall be the Reinsurers' sole responsibility to ensure that they are fully licensed to transact business in the Territories and in the Classes of Business set out in the Contractual Details. In the event that the Reinsurers become aware of any licensing issues, the Reinsurers shall notify the Reinsured immediately and shall take all reasonable actions to comply with the required licensing terms.

**REGULATORY
CLIENT
CLASSIFICATION**

: Reinsurance.

BROKER REMUNERATION AND DEDUCTIONS

**FEE PAYABLE BY
REINSURED /
CLIENT**

: No.

**TOTAL
BROKERAGE**

: 10 % (Nil on Reinstatement). Inclusive 2,2% VAT

**OTHER
DEDUCTIONS
FROM PREMIUM**

: None.

PT. Marsh Reinsurance Brokers Indonesia
World Trade Center 3, 16th Floor
Jl Jend Sudirman Kav 29-31
Jakarta 12920, INDONESIA
+62 21 5797 8100
www.marsh.com

License No. : KEP-365/NB.1/2013

Contract Number: N7XB000124/S8A1009724

**REINSURED
SIGNING PAGE**

Attaching to and forming part of

PT. ASURANSI TRI PAKARTA, Jakarta, Indonesia

WHOLE ACCOUNT EXCESS OF LOSS REINSURANCE AGREEMENT

The Reinsured hereby agrees to the terms and conditions of this Contract:

Signed for and on behalf of the Reinsured:

PT. ASURANSI TRI PAKARTA, Jakarta, Indonesia

In.....on this.....day of....., 2024

PT. Marsh Reinsurance Brokers Indonesia
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**REINSURER
SIGNING PAGE**

Attaching to and forming part of

PT. ASURANSI TRI PAKARTA, Jakarta, Indonesia

WHOLE ACCOUNT EXCESS OF LOSS REINSURANCE AGREEMENT

The Reinsurer named below hereby agrees to the terms and conditions of this Contract in respect of the participation as stated below:

Reinsurer Name : PT. REASURANSI INDONESIA UTAMA (PERSERO)

Written Participation : 35% of 100% Treaty Limit ATB

Signed Participation : 35% of 100% Treaty Limit ATB

Reference : - 24TT240F - Whole Account Risk Cat XL 1st Layer
- 24TT240A - Whole Account Risk Cat XL 2nd Layer
- 24TT240B - Whole Account Cat XL 3rd Layer
- 24TT240C - Whole Account Cat XL 4th Layer
- 24TT240D - Whole Account Cat XL 5th Layer

Signed in..... Jakarta..... this..... 05..... day of..... March....., 2024

